

The Motion granted. Plaintiff shall prepare the Order and submit an amended judgment within 10 days.

6. 9:00 AM CASE NUMBER: MSL12-04359

CASE NAME: CAVALRY VS CARDENAS

*HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT JUDGMENT FILED BY PLN ON 11/20/25

FILED BY: CAVALRY SPV I, LLC

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action with prejudice, under Section 473 of the CCP, on the basis that the parties have agreed to a mutual release.

Disposition

Motion to Set Aside is granted. The case is dismissed with prejudice. Plaintiff shall prepare the Order.

7. 9:00 AM CASE NUMBER: N26-0060

CASE NAME: KUANGSUN TUNG VS. CITY OF CONCORD

HEARING IN RE: PETITION FOR ORDER RELIEVING FROM GOV CLAIM

FILED BY: TUNG, KUANGSUN

***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a petition for this court to grant him relief from the requirements of the Government code, under Section 946.6 of the Government Code, allowing him to file a claim against Defendant, City of Concord ("Defendant" or "City").

The Government Code requires that a Plaintiff meet certain pre-conditions before filing a civil claim against a city, such as submitting an application to the local government entity for a cause of action. Plaintiff's initial application to the City was denied because it was untimely. Plaintiff subsequently filed a late-claim application to the City, as required by the Government Code, which was also denied.

Defendant, in their response to this Petition, contends that Plaintiff cannot seek relief from the requirements because his application for a late claim occurred more than one year from the accrual of the cause of action.

Analysis

Government Code section 946.6 permits a petition to the superior court for relief from the requirements of Section 945.5 only if the petitioner applied to present a late claim to the appropriate public entity board no more than 12 months from date of the accrual of action. (See Gov. Code sections 946.6(c) and 911.4(b).)

"When the underlying application to file a late claim is filed more than one year after accrual of the cause of action, the court is without jurisdiction to grant relief..." (*Greyhound Lines, Inc. v. County of Santa Clara* (1986) 187 Cal.App.3d 480, 488.)

A cause of action thus accrues "when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) "[T]he limitations period begins once the plaintiff has notice or information of circumstances to put a reasonable person on inquiry." (*Id.* at 1110-1111.)

"Under [the delayed discovery] doctrine, a cause of action does not accrue until the plaintiff discovers, or has reason to discover, the cause of action. A plaintiff has reason to discover a cause of action when he or she has reason to at least suspect a factual basis for its elements. Suspicion of one or more of the elements, coupled with knowledge of any remaining elements, will generally trigger the applicable limitations period. This refers to the generic elements of wrongdoing, causation, and harm and does not require a hyper technical approach. Instead, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them." (*S.M. v. Los Angeles Unified School Dist.* (2010) 184 Cal.App.4th 712, 717.)

In the instant matter, Plaintiff began to experience plumbing problems within the same month – December, 2023 - that the City's work on the sidewalk occurred and was completed. He concedes

that, during the time frame of December, 2023, to February, 2025, he hired plumbers “multiple times.”

It wasn’t until 10/16/25 that Petitioner submitted a late claim application, under Section 911.4 of The Government Code, to the City of Concord.

The court infers from this time frame that plumbers were called with an even level of frequency throughout this time period, rather than only from the time period beginning January, 2025. To conclude otherwise renders superfluous the time frame provided by Plaintiff.

While it is true that Plaintiff did not get video evidence from CCTV until March of 2025, this evidence wasn’t necessary for him to have reason to suspect that the City had committed some sort of wrongdoing. Any reasonable person would suspect that the City’s sidewalk construction had something to do with the plumbing problems that occurred shortly thereafter. Put a different way: the temporal proximity of the construction and the plumbing problems would have put a reasonable person on notice of a potential issue lurking under the surface that was linked to the City’s work. Plaintiff was not entitled to remain willfully blind.

Thus, the court finds that the cause of action accrued in December of 2023.

This court finds that Plaintiff’s application for a late claim to the City of Concord, under Section 911.4 of the Government Code, was untimely.

Disposition

Plaintiff’s Petition is Denied. Defendant shall prepare the Order.